



File No.: EXP202314031

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 1, 2023, A.A.A. filed a complaint with the Spanish Agency for Data Protection against CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E with NIF A28799120 (hereinafter, the complained party or CORREOS EXPRESS). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was carried out by the complained entity and that on September 1, 2023, the delivery person responsible for delivering said package, which bore their postal details, deposited it in a nearby public establishment to the complainant's residence, without prior authorization for doing so. Along with the complaint, the complainant provides the delivery receipt of the package of which they were the recipient.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to CORREOS EXPRESS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 13, 2023, as recorded in the acknowledgment of receipt in the file. On November 8, 2023, a response was received by this Agency indicating that "...Following the internal investigation initiated by Correos Express, as outlined in section 1 of this document, the following facts have been clarified:

On August 31, 2023, a shipment with shipping code No. ***REFERENCE.1 was processed, whose recipient was the complainant, Mrs. A.A.A., and the sender was the company Arise Netherlands E-commerce B.V. (hereinafter, "MIRAVIA"), which is a client of Correos Express having entered into a commercial agreement for the provision of transport services. We attach to this document as ANNEX 1 the details of the shipment subject to the complaint that appear in the information systems of Correos Express and as ANNEX 2 the

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Commercial agreement for the provision of transportation services between MIRAVIA and Correos Express.

The following day, September 1, 2023, the driver responsible for delivering the shipment delivered the shipment at 10:34 AM, as evidenced by the proof of delivery attached as ANNEX 3.

On the same day, September 1, 2023, at 2:45 PM, the claimant made a call to the Customer Service phone number of Correos Express where, through an IVR system (interactive voice response automated system), the claimant indicated that the shipment for which she wanted to file a complaint was ***REFERENCE.1. In the IVR system message of Correos Express, it was indicated that an SMS would be sent with the necessary information for managing the complaint. Subsequently, on that same day, September 1, 2023, at 2:35 PM, an SMS was sent from Correos Express to the phone number from which the claimant had made the call (which was the same as that provided in the recipient's details given by the sender) with a link for processing the complaint. In that link, the claimant provided her email address and the reason for the complaint.

On that same day, September 1, 2023, at 9:04 PM, an email was sent to the email address provided by the claimant indicating that her shipment had been located, and the Customer Service of Correos Express considered the complaint closed on that same day. We attach as ANNEX 4 the aforementioned communications between the claimant and the Customer Service of Correos Express and the information about them that appears in the information systems of Correos Express.

On September 7, 2023, Correos Express received a complaint from Mrs. A.A.A. through the Consumers and Users Organization (OCU) in which the claimant indicated that her shipment had been delivered to a location without her consent, requesting economic compensation for this reason. The following day, September 8, 2023, the Customer Service of Correos Express responded by first apologizing for the inconveniences caused and indicating that the claimant's dissatisfaction had been forwarded to the relevant department of Correos Express in order to avoid a similar incident in the future. We attach as ANNEX 5 the complaint filed through the OCU by Mrs. A.A.A. and the response from Correos Express to this complaint.

After this last communication, Correos Express did not receive any further communication from the claimant or the sender of the shipment until October 11, 2023, the date on which Correos Express received the request for the transfer of the complaint and request for information from the Spanish Agency for Data Protection (AEPD).

At the moment the transfer of the complaint was received from the AEPD, as we have already indicated, internal investigations were immediately initiated to clarify this matter. The delivery person responsible for making the delivery was contacted to request clarification regarding it, and he indicated that he went to deliver the shipment in question to the destination address, but that when he arrived, the recipient was not at her home, a person who worked at C/ Jorge Juan, 6.

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The establishment adjacent to the claimant's address indicated that it knew the recipient of the shipment and that it should be delivered to her, as she usually collected the packages. Furthermore, the delivery person apologized for his poor practice in carrying out the delivery of the shipment and confirmed that the recipient had retrieved her package. We attach the sworn statement of the delivery person as ANNEX 6 to this document.

At this point, we consider it essential to point out that Correos Express provides instructions on how deliveries should be carried out to all carriers distributing shipments from Correos Express.

Additionally, Correos Express periodically reminds carriers to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them. We attach as ANNEX 7 to this document a communication sent by Correos Express reminding how deliveries of shipments operated by Correos Express should be made, specifically indicating that deliveries can only be made to third parties other than the recipients in those cases where the recipient has authorized in writing the delivery of the shipment to a third party...

THIRD: On November 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since CORREOS EXPRESS carries out, among other treatments, the retention and use of the following personal data of individuals, such as: name, surname, location data, etc.

CORREOS EXPRESS carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss or alteration of personal data transmitted, stored or otherwise processed, or to the unauthorized communication or access to such data."

III

Adoption of measures for compliance with regulations

CORREOS EXPRESS states in the document submitted to the AEPD on November 8, 2023, that "...Correos Express provides instructions on how deliveries should be carried out to all carriers distributing shipments from Correos Express. Additionally, Correos Express periodically reminds carriers to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them.

We attach as ANNEX 7 to this document a communication sent by Correos Express reminding how deliveries of shipments operated by Correos Express should be made, specifically indicating that deliveries can only be made to third parties other than the recipients in those cases where the recipient has authorized in writing the delivery of the shipment to a third party..."

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Consequently, it is evident that CORREOS EXPRESS has adopted additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 of the LOPDGDD is warranted, which expressly states that:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates having adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint, when in the specific case there are circumstances that advise the adoption of other more moderate or alternative solutions to corrective action, provided that prior investigative actions or any of the procedures regulated in this organic law have not been initiated (...)"

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, there are circumstances that advise the adoption of alternative solutions to corrective action, the archiving of the complaint is warranted.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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